7.09: continued

(g) Upon request by the Department the licensee must provide a current statement signed by a physician or other professional acceptable to the Department certifying that any household member or person regularly on the premises of the family child care home is in good physical and mental health.

(16) Additional Requirements for Small Group and School Age Child Care.

(a) At least one educator in each small group and school age child care program must meet the qualifications for a family child care provider for the number of children in care; or

1. be teacher or site coordinator qualified by EEC, if caring for six or fewer children;
2. be lead teacher qualified, or have two years of experience as a teacher or site coordinator if caring of seven or eight children; or
3. have three years of experience as a teacher or site coordinator, or be lead teacher or program administrator qualified, if caring for nine or ten children.

(b) Additional staff in small group and school age child care programs must be at least 16 years of age and in high school, or at least 18 years of age.

(c) Educators in small group and school age child care must complete ten hours of professional development activities per year. At least 25% of the required professional development must address diverse learners.

(17) Additional Requirements for Small Group and School Age and Large Group and School Age Child Care.

(a) Staff Orientation. The licensee must provide and document orientation for all employees.

1. No staff person shall supervise or be solely responsible for children in care until she/he has received the minimum orientation described in 606 CMR 7.09(16)(a)2.
2. The licensee must have a written plan for staff orientation, which must include:
   a. the position of the staff person responsible for conducting the orientation;
   b. the schedule and number of hours of the orientation; and
   c. the content of the orientation which must include, but not be limited to a review of the following: job description; personnel policies; statement of purpose; statement of non-discrimination; health care policy, including medication administration policies and infant sleeping positions; information contained in the children's records that is pertinent to the education and care of the children; the program's confidentiality policy; child guidance policies and procedures for protecting children from abuse and neglect; suspension and termination policy; emergency plans and procedures; program plans; referral procedures; transportation plans; procedures for parent visits, input, conferences and communication; the identification of the Department of Early Education and Care as the licensing authority; and notification that 102 CMR 1.00 and 606 CMR 7.00 and 14.00 are available at the program site.

(b) Staff Supervision. The licensee must describe in writing and implement its plan for regular, ongoing supervision of all educators, as appropriate to their positions. Supervision must include, but not be limited to:

1. observation of educators while working with children at least every two months by a staff with lead teacher, site coordinator or higher qualifications;
2. consultation with educators regarding children's individual needs and communication with families; and
3. documentation of all observations and consultations.

(c) Staff Evaluation. The licensee must conduct and document at least an annual written evaluation of the performance of each educator.

1. The evaluation must identify staff training and professional development needs; modify staff performance agreements, as necessary, and be used to assist each educator in improving his or her skills and professional competencies.
2. Each educator must have the opportunity to provide input, read, comment on and sign his/her annual evaluation.

(d) First Aid Training. All educators must obtain within six months of employment, and must maintain thereafter current certification of training in basic first aid appropriate to the population served.

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(18) Additional Requirements for Large Group and School Age Child Care Programs Serving Children Younger than School Age.

(a) Definitions. For the purposes of educator qualifications in 606 CMR 7.09(18), the following definitions shall apply:

1. Alternative Early Childhood Training Program. The successful completion of a post-secondary early childhood teacher training program, approved by the Department, which includes both academic study of the categories in 606 CMR 7.09(18)(b) and at least one practicum as defined in 606 CMR 7.09(18)(a)2.

2. Practicum. The successful completion of a minimum of 150 hours, over at least an eight week period, of direct work with infants and toddlers or preschoolers, supervised by personnel from an institution of higher learning or an alternative early childhood training program, with at least three site visits, including conferencing, and placement with a lead teacher qualified staff member. Responsibilities of the student intern shall include program planning, parent relations, and management of the whole group for a portion of the placement. The practicum must be with the appropriate chronological or developmental age to qualify staff to work with the corresponding age group. One practicum may substitute for nine months of work experience.

3. Related Field of Study. A program at an accredited institution of higher learning which includes the study of caregiving, development, education, health care, or psychology of children, birth to eight years of age, or provision of direct services to children and their families.

4. Work Experience. Experience in providing direct care and teaching during all types of program activities to a group of children, younger than seven years old and not yet enrolled in first grade, or special needs children up to age 16, at least 12 hours per week, on a regular basis, in periods of at least four weeks in one program. Work experience of less than 12 hours per week may count as follows: 50 hours of consistent work at one program is equivalent to one month of work experience. Work experience, whether paid or unpaid, must meet the staff supervision requirements in 606 CMR 7.09(17)(b) and (c). Work experience must be in a licensed group child care center, family child care home or equivalent program accepted by the Department.

(b) Categories of Study. The requirement for a category of study must be met with credits from an accredited institution of higher learning, alternative early childhood training program or with an Early Childhood Continuing Education Unit (CEU). Four CEUs in the same category of study are equal to three credits, three CEUs in the same category of study are equal to two credits. CEUs will not apply to Child Growth and Development. No more than three of the required 12 credits for lead teacher certification may be met with CEUs. The study of Early Childhood Education shall be categorized as follows:

1. Child Growth and Development, Birth - Eight Years.
2. Planning Programs and Environments for Young Children
3. Curriculum for Early Childhood Settings
4. Child and Classroom Management
5. Advanced or Specialized Early Childhood Education or Development
6. Children with Special Needs, Birth through 16 years.
7. Infant and Toddler Development, Care, and Program Planning
8. Health and Safety in Early Childhood
9. Families and Community
10. Child Care Policy
11. Supervision or Staff Development in Early Childhood Education
12. Child Observation, Documentation and Assessment
13. Child Care Administration

(c) Educator Qualifications.

1. Assistant Teacher. Must be at least 16 years of age or have a high school diploma or equivalent; must work at all times under the direct supervision of at least a teacher qualified staff person.

2. Teacher.

a. Must be at least 21 years of age or have a high school diploma or equivalent and meet one of the following sets of requirements:

i. have successfully completed three credits in category Child Growth and Development and have nine months of work experience or one practicum; or

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ii. have a Child Development Associate (CDA) Credential; or

iii. have graduated from a two-year high school vocational program in early childhood education, approved by the Department for both the education and experience requirements and have been evaluated and recommended by the program instructor.

b. The following education may substitute for a portion of the required work experience:

i. An Associate's or Bachelor's degree in early childhood education or a related field of study may substitute for six months of the required experience.

ii. A Bachelor's degree in an unrelated field of study may substitute for three months of the required experience.

iii. For infant-toddler teachers, one continuing education unit (ten hours of instruction) in category Infant and Toddler Development, Care and Program Planning may substitute for three months of work experience.

c. To be qualified as a preschool teacher, three months of the required work experience must be in caregiving to preschool age children.

d. To be qualified as an infant/toddler teacher, three months of the required work experience must be in caregiving to infant/toddlers.

3. Lead Teacher for Infants and Toddlers. Must be at least 21 years of age and meet one of the following sets of requirements for education and experience. At least nine months of work experience or one practicum must be with infants and toddlers. If all work experience is with infants and toddlers, the total work experience required is reduced by ⅓.

a. High School diploma or equivalent; and

i. 12 credits in at least four categories of study except Child Care Administration including three credits in Child Growth and Development and three credits in Infant and Toddler Care; and

ii. 36 months of work experience.

b. High School diploma or equivalent; Child Development Associate (CDA) Credential in Center-based, Home Visitor or Family Child Care setting with infant/toddler endorsement and 27 months of work experience.

c. Associate's degree in Early Childhood Education or a related field of study; and

i. 12 credits in at least four categories of study except Child Care Administration including three credits in Child Growth and Development and three credits in Infant and Toddler Care; and

ii. 18 months of work experience.

d. Bachelor's degree in an unrelated field of study; and

i. 12 credits in at least four categories of study except Child Care Administration including three credits in Child Growth and Development and three credits in Infant and Toddler Care; and

ii. 18 months of work experience.

e. Bachelor's or advanced degree in Early Childhood Education or in a related field of study; and

i. 12 credits in at least four categories of study except Child Care Administration including three credits in Child Growth and Development and three credits in Infant and Toddler Care;

ii. and nine months of work experience.

f. Alternative Early Childhood Training Program; and

i. 12 credits in at least four categories of study except Child Care Administration including three credits in Child Growth and Development and three credits in Infant and Toddler Care; and

ii. 27 months of work experience.

g. Certification as an Early Intervention Specialist by the Department of Public Health.

4. Lead Teacher for Preschoolers. Must be at least 21 years of age and meet one of the following sets of requirements for education and experience. At least nine months of work experience or one practicum must be with preschoolers.

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a. High School diploma or equivalent; and
i. 12 credits in at least four categories of study except Child Care Administration including three credits in Child Growth and Development, and two credits in Planning Programs, Curriculum or Classroom management; and
ii. 36 months of work experience.

b. High School diploma or equivalent; Child Development Associate (CDA) Credential in Center-based, Home Visitor, or Family Child Care setting with a preschool endorsement; and 27 months of work experience.

c. Associate's degree in Early Childhood Education or a related field of study; and
i. 12 credits in at least four categories of study except Child Care Administration including three credits in Child Growth and Development, and two credits in Planning Programs, Curriculum or Classroom management; and
ii. 18 months of work experience.

d. Bachelor's degree in an unrelated field of study; and
i. 12 credits in at least four categories of study except Child Care Administration including three credits in Child Growth and Development, and two credits in Planning Programs, Curriculum or Classroom management; and
ii. 18 months of work experience.

e. Bachelor's or advanced degree in Early Childhood Education or in a related field of study; and
i. 12 credits in at least four categories of study except Child Care Administration including three credits in Child Growth and Development, and two credits in Planning Programs, Curriculum or Classroom management; and
ii. nine months of work experience.

f. Alternative Early Childhood Training Program; and
i. 12 credits in at least four categories of study except Child Care Administration including three credits in Child Growth and Development, and two credits in Planning Programs, Curriculum or Classroom management; and
ii. 27 months of work experience.

g. K-3 Teacher of Young Children with Special Needs Certification from the Department of Education.

5. Director I: must meet the requirements of lead teacher; have six months of work experience after meeting lead teacher qualifications; have evidence of satisfactory completion of at least two credits or three CEUs in category Child Care Administration; and have evidence of satisfactory completion of at least two additional credits or three CEU's in any category 606 CMR 7.09(18)(b)1. through 12.

6. Director II: must meet all the requirements of Director I and have evidence of satisfactory completion of at least two additional credits or three CEUs in any category 606 CMR 7.09(18)(b)6. or 606 CMR 7.09(18)(b)8. through 13.

(d) Professional Development. Educators in large group and school age child care programs must participate in professional development activities as follows:

1. Educators working fewer than ten hours per week shall complete a minimum of five hours of professional development activities per year;

2. Educators working at least ten but fewer than 20 hours per week shall complete a minimum of 12 hours of professional development activities per year;

3. Educators working 20 or more hours per week shall complete a minimum of 20 hours of professional development activities per year.

4. At least one third of the required professional development must address diverse learners.

(19) Additional Requirements for Large Group and School Age Child Care Programs Serving School Age Children.

(a) Staff Qualifications.

1. Assistant Leader. An assistant leader assists the group leader in carrying out his/her responsibilities. An assistant leader shall be:

a. at least 16 years of age, work under the direct supervision of a group leader, and either
i. have a high school diploma or equivalent; or
ii. be currently enrolled in a high school program or equivalent; or

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b. 18 years of age or over and work under the general supervision of the group leader.

2. Group Leader. A group leader shall be at least 18 years of age and meet one of the following sets of requirements:

a. Have a Bachelor's Degree or an Associate's Degree; and have three months of experience working with school age children; or

b. Have a high school diploma or equivalent; and have six months of experience working with school age children including three months of supervised experience at a school age child care program; or

c. Have nine months of experience with school age children including three months of supervised experience at a school age child care program.

3. Site Coordinator. A site coordinator shall be at least 20 years of age and meet one of the following sets of requirements:

a. Have a minimum of a Bachelor's Degree in Child Development, Early Childhood Education, Elementary Education, Child Guidance, Human Service s, Nursing, Psychology, Physical Education, Recreation, Child Psychology, the Arts, Social Work, Sociology, or Child Care; and have six months of experience working with school age children; or

b. Have a Bachelor's Degree in any field or an Associate's Degree in any field of study listed in 606 CMR 7.09(19)(a)3.a. and have nine months of experience working with school age children; or

c. Have a high school diploma or equivalent; and have one year of experience working with school age children.

4. Program Administrator. Must be at least 21 years of age and meet the requirements of a Site Coordinator. In addition the Program Coordinator must have six months of administrative experience or evidence of satisfactory completion of at least nine credits in management or administration subject areas from an accredited institution of higher education.

(b) Professional Development. Educators in large group and school age child care programs must participate in professional development activities as follows:

1. Educators working fewer than ten hours per week shall complete a minimum of five hours of professional development activities per year;

2. Educators working at least ten but fewer than 20 hours per week shall complete a minimum of 12 hours of professional development activities per year;

3. Educators working 20 or more hours per week shall complete a minimum of 20 hours of professional development activities per year.

4. At least ⅓ of the required professional development must address diverse learners.

7.10: Ratios, Group Sizes and Supervision of Children

The following requirements apply to all programs, including family child care, small group and school age and large group and school age child care. Additional requirements for family child care are found at 606 CMR 7.10(6) and (7). Additional requirements for small group and school age child care are found at 606 CMR 7.10(7) and (8). Additional requirements for large group and school age child care are found at 606 CMR 7.10(8) and (9).

(1) The licensee must maintain sufficient numbers of qualified staff to promote the health, safety, growth and development of each child. Assignment of staff must take into account the physical environment, requirements of the activities children are engaged in, and the developmental levels and behavioral traits of children in care.

(2) Ratios. The program must have the number of educators necessary to:

(a) ensure adequate supervision of the group at all times;

(b) provide individual attention to children; and

(c) promote their physical, social, emotional and cognitive development.

(3) Staff to be Included in Ratios.

(a) For purposes of calculating staff: child ratios, staff shall include only those EEC-qualified persons who are assigned to care for children for specific hours of the day.

7.10: continued

(b) Volunteers and student interns shall not be included in staff: child ratios unless they are at least 16 years of age (in Small and Large Group and School Age Child Care) or at least 18 years of age (in Family Child Care) and are assigned to the program for at least three months.

(4) Multi-age Grouping. A group of children ranging in age from birth through 13 years (or 16 years, if such children have special needs), may be assigned on an ongoing basis to a single group, provided all provisions of 606 CMR 7.10(4) are met. The Multi-age Grouping ratios and group sizes specified at 606 CMR 7.10(4)(d) through (h) may be used by:

(a) family child care and small group and school age child care programs;

(b) large group and school age child care programs during the initial two hours and final two hours of the program day, if:

1. the program operates more than seven hours per day, and
2. educators meet the qualifications required of educators in large group and school age child care programs;

(c) large group and school age child care programs during the entire program day when approved by the Department.

1. A large group and school age child care program may apply for and receive approval of a single full day Multi-age Group when it can demonstrate that:
   a. the developmental needs of every child in the Multi-age Group can be met in that setting;
   b. the program's physical environment is sufficiently self-contained to allow the benefits of a "family setting" within a larger, center based program.
2. The Department may approve additional Multi-age Groups within a large group and school age child care program if the licensee can demonstrate, to the satisfaction of the Department, that the initial Multi-age Group has operated successfully for at least one year.

Regulation Number	Group Size	Minimum Number of Educators Present	Limits on Ages of Children
606 CMR 7.10(4)(d)	six or fewer children	one educator	No more than three children younger than two years old, including at least one toddler who is walking independently. Additional children must be older than 24 months.
606 CMR 7.10(4)(e)	seven or eight children	one educator	No more than three children younger than two years old, including at least one toddler who is walking independently. Additional children must be older than 24 months. All children over capacity of six must be school age.
606 CMR 7.10(4)(f)	six or fewer children	two educators	No more than six children younger than two years old.
606 CMR 7.10(4)(g)	seven – ten children	two educators	No more than six children younger than two years old, including no more than three infants.
606 CMR 7.10(4)(h)	seven-ten children	three educators	No more than six infants. Additional children must be 15 months of age or older.

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(5) Supervision of Children. In addition to interacting with children as required by 606 CMR 7.05, all licensees and educators must exercise appropriate supervision of the children in their care in order to ensure their health and safety at all times. Such supervision must include, but not be limited to, indoor and outdoor activities, mealtimes, naptime, transportation, field trips, and transitions between activities.

(a) Children younger than six months of age at the time of enrollment must be under direct visual supervision at all times, including while napping, during the first six weeks they are in care.

(b) Licensees and educators must use good judgment at all times and must consider the following factors when determining the appropriate level of supervision:

1. the chronological age and developmental needs of each child;
2. the behavioral characteristics of each child;
3. the number of educators supervising each group and their qualifications;
4. the environment and its impact upon the educator's ability to see and/or hear children; and
5. the nature of the activity and the materials and equipment used.

(c) Educators must be in sufficient proximity to children at all times in order to be able to intervene quickly when necessary.

(d) Educators must be positioned to maximize their ability to see and/or hear children in their care.

(e) Educators must be aware of children's activities at all times.

(f) Educators must not engage in any other activities or tasks that could unnecessarily divert their attention from supervising the children.

(g) In programs serving infants and toddlers, educators must not leave a child unattended in an infant seat, on a changing table, or any other surface that could result in a fall.

(h) No child may be outdoors without appropriate adult supervision as set forth in 606 CMR 7.10(5)(b).

(i) As provided at 606 CMR 7.13(3)(j), a child must never be left unattended in a vehicle.

(j) Children age seven or older may, with written parental consent, participate in activities within the approved indoor space without constant visual supervision by the educator. The educator must be aware of the child's location, monitor the child's activity at regular intervals based on the factors in 606 CMR 7.10(5)(b), be readily available to assist children, as needed, and be able to respond immediately to an emergency situation.

(k) Children age nine or older may leave the premises with written parent and educator consent, provided that the consent specifies the day and time the child will leave, the time the child will return, if applicable, the method of transportation the child will use, and the parent's responsibility for the child once he or she leaves the premises.

(6) Additional Provisions for Family Child Care. Notwithstanding 606 CMR 7.10(5)(h):

(a) children five years of age or older may be allowed to engage in outdoor activities unaccompanied by the educator if:

1. the outdoor play space is located on the family child care premises of a single family or first floor residence, and is enclosed by a fence at least four feet high; and
2. the children are observed by the caregiver every 15 minutes;
3. the time unaccompanied by the provider does not exceed one hour; and
4. the parents have given written permission.

(b) Children age seven or older may, with written parental consent, participate in activities within the approved outdoor space unaccompanied by the provider if the educator:

1. is aware of the child's location;
2. monitors the child's activity at regular intervals based on the factors in 606 CMR 7.10(5)(b);
3. is readily available to assist the children, as needed; and
4. is able to respond immediately to an emergency situation.

(7) Additional Requirements for Family Child Care and Small Group and School Age Child Care.

(a) Except as provided at 606 CMR 7.10(5)(j), children must always be on the same floor level as the educator.

(b) Except when attending to their personal hygiene needs, educators must be actively engaged in child care and education activities during all times when children are in care.

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(c) Educators must ensure that infants and toddlers are placed in a safe location when educators are unable to maintain direct eye contact with them for any reason.

(d) The educator must visually observe napping children at least every 15 minutes. When children are placed in a separate room for naps, the door must remain ajar.

(8) Additional Provisions for Small Group and School Age and Large Group and School Age Child Care.

(a) Notwithstanding the provisions of 606 CMR 7.10(5)(j), the educator must accompany children to the bathroom whenever toilet facilities used by the children in care are also available to the public. When toilet facilities are used exclusively by the licensee's program and are not available to the public, an individual child of the appropriate age may, with permission from the educator, go to the bathroom independently. The educator may only allow one child at a time to use the bathroom independently.

(b) Whenever more than one educator is providing care:

1. the Licensee must establish a written schedule listing all persons on duty, including volunteers. The schedule must show compliance with at least the minimum educator ratios at all times, including during breaks and planning time;

2. the Licensee must keep the schedule current and posted in an area easily visible to educators, parents and visitors.

(c) Notwithstanding the staff: child ratios provided at 606 CMR 7.10(4), there must always be a second adult trained in the program's health care and emergency procedures immediately available in case of an emergency.

(9) Additional Provisions for Large Group and School Age Child Care.

(a) Group Assignment of Children.

1. All group assignments must be developmentally appropriate for the individual child.

2. The group size must be appropriate for the activities planned and for the characteristics of children assigned to the group.

3. Each child must be assigned to a consistent group with consistent staffing.

4. Notwithstanding the definitions of infant, toddler, preschool or school age child, children may be assigned to fixed age groups outside their chronologically defined age group based on a review of the child's most recent progress report or a narrative from the child's parent addressing the child's abilities in the areas of mobility, fine and gross motor control, communication, social interactions and cognition.

5. Whenever a child is considered for assignment in a fixed age group outside his chronologically defined age group, the licensee must:

a. consult with the child's parents, seek input into the group assignment decision, and obtain the parent's approval;

b. consider and document:

i. the specific reasons why the alternative group assignment is proposed;

ii. the child's ability to effectively participate in the proposed group's activities; and

iii. the ability of the group to accommodate the child's needs and behaviors;

c. ensure that the ages of children within the proposed group are not so divergent as to inhibit the child's growth and development;

d. ensure that a child is assigned to the next younger or next older chronologically defined age group;

e. document:

i. a monthly review of the child's adjustment to the group until the child reaches the minimum chronologically defined age of the group, if the child is younger than the defined age; or

ii. a monthly review of the child's skill development and a transition plan showing how and when the child will be moved to a group consistent with the child's chronological age, if the child is older than the defined maximum age of the group.

6. No more than two children outside the chronologically defined age range may be assigned to a fixed age group.

7.10: continued

(b) Fixed Age Groups. Children may be assigned to groups with others within their same age range, as specified by the Department provided the requirements of 606 CMR 7.10(9)(b)1. through 6. are met. The fixed age group ratios and groupings below may be used by large group and school age child care programs.

Regulation Number	Age Group/Full or Half Day Program	Maximum Group Size	Educator/Child Ratio	Educator Qualifications
606 CMR 7.10(9)(b)1.	Infants (up to 15 months old) (Full or Half Day)	7	1: 3, one additional educator for four – seven infants	At least one Infant/Toddler Teacher, per 606 CMR 7.09(18)(c)2.
606 CMR 7.10(9)(b)2.	Toddlers (15 to 33 months) (Full or Half Day)	9	1:4, one additional educator for five – nine toddlers	At least one Infant/Toddler Teacher, per 606 CMR 7.09(18)(c)2.
606 CMR 7.10(9)(b)3.	Preschoolers 33 months to school age (Full Day)	20	1:10	At least one Preschool Teacher, per 606 CMR 7.09(18)(c)2.
606 CMR 7.10(9)(b	Preschoolers 33 months to school age (Half Day)	24	1:12	At least one Preschool Teacher, per 606 CMR 7.09(18)(c)2.
606 CMR 7.10(9)(b)5.	Kindergarten (attending first grade the following year)	30	1:15	At least one Preschool Teacher, per 606 CMR 7.09(18)(c)2.
606 CMR 7.10(9)(b)6.	School Age	26	1:13	At least one Group Leader, per 606 CMR 7.09(19)(a)2.

(c) Mixed Age Groups. The mixed age group ratios and groupings may be used:

Regulation Number	Age Group	Maximum Group Size	Educator / Child Ratio	Educator Qualifications
606 CMR 7.10(9)(c)1.	Infant / Toddler Group	9; no more than three infants	1:3; one additional educator for four – nine children	At least one Infant/ Toddler Teacher, per 606 CMR 7.09(18)(c)2.
606 CMR 7.10(9)(c)2.	Toddler / Preschool Group	9	1:5; one additional educator for six – nine children	At least one Infant/Toddler and Preschool Teacher, per 606 CMR 7.09(18)(c)2.
606 CMR 7.10(9)(c)3.	Preschool / School Age Group	20; maximum age is eight	1:10	At least one Preschool Teacher, per 606 CMR 7.09(18)(c)2.
606 CMR 7.10(9)(c)4.	Kindergarten / School Age Group	26	1:13	Group Leader, per 606 CMR 7.09(19)(a)2.

7.11: Health and Safety

The following requirements apply to all programs, including family child care, small group and school age and large group and school age child care. Additional requirements for family child care are found at 606 CMR 7.11(17). Additional requirements for small group and school age child care are found at 606 CR 7.11(18). Additional requirements for large group and school age child care are found at 606 CMR 7.11(18) and (19).

(1) Training. All educators must be trained in the program's emergency and evacuation procedures, in standard precautions and in medication administration procedures.

(a) First Aid and CPR.

1. The licensee must ensure that at least one educator currently certified in first aid and age-appropriate cardiopulmonary resuscitation (CPR) is present at any and all times when children are in care.
2. CPR training must be renewed annually.
3. Only educators who are currently certified in first aid and CPR may provide first aid and CPR.

(b) Medication. Each person who administers prescription or non-prescription medication to a child must be trained to verify and to document that the right child receives the proper dosage of the correct medication designated for that particular child and given at the correct time(s), and by the proper method. Each person who administers medication (other than topical medication) must demonstrate competency in the administration of medication before being authorized by the licensee to administer any medication.

1. The licensee must ensure that at least one educator with training in medication administration is present at any and all times when children are in care.
2. Each person who administers any medication, other than oral or topical medications and epinephrine auto-injectors, must be trained by a licensed health care practitioner and must demonstrate annually to the satisfaction of the trainer, competency in the administration of such medications. An alternative method of training approved by the Massachusetts Department of Public Health (MDPH) can be substituted with approval from MDPH.
3. The licensee must ensure that each educator, including those educators who do not administer medication, receives training in recognizing generic medication side effects and adverse interactions among various medications, and potential side effects of specific medications being administered in the program.

(2) Medication Administration.

(a) The licensee must have a written policy regarding administration of prescription and non-prescription medication. The policy must provide for the administration of medications ordered by a child's health care practitioner.

(b) All medication administered to a child, including but not limited to oral and topical medications of any kind, either prescription or non-prescription, must be provided by the child's parent, unless noted in 606 CMR 7.11(2)(e)1.

(c) All prescription medications must be in the containers in which they were originally dispensed and with their original labels affixed. Over-the-counter medications must be in the original manufacturer's packaging.

(d) The educator must not administer any medication contrary to the directions on the original container, unless so authorized in writing by the child's licensed health care practitioner. Any medications without clear instructions on the container must be administered in accordance with a written physician or pharmacist's descriptive order.

(e) Unless otherwise specified in a child's individual health care plan, the educator must store all medications out of the reach of children and under proper conditions for sanitation, preservation, security and safety during the time the children are in care and during the transportation of children.

1. Those medications found in United States Drug Enforcement Administration (DEA) Schedules II through V must be kept in a secured and locked place at all times when not being accessed by an authorized individual.
2. Prescription medications requiring refrigeration shall be stored in a way that is inaccessible to children in a refrigerator maintained at temperatures between 38°F and 42°F.

(f) Notwithstanding the provisions of 606 CMR 7.11(2)(e), emergency medications such as epinephrine auto-injectors must be immediately available for use as needed.

(g) Each licensee shall have a written policy on medication disposal.